

EMPLOYEE CLASSIFICATION

It is the policy of the Loudoun County School Board to establish full-time and part-time employment of its employees for the purpose of differentiating between various employees of the Board with regard to specific terms of employment, written employment contracts and agreements, and employment at will. Employee classifications are established in accordance with the Fair Labor Standards Act (FLSA), the provisions of this policy, and beginning in the 2024-2025 school year, as stated on the employees' contract, memo, or assignment letter.

A. Definitions.

1. Employees of the Board. All employees are "Employees of the Board", and whenever reference is made to employees without distinction, such statement shall refer to all employees with the exception of the Superintendent.

2. Teacher Employees. Teacher employees shall include those employees whose positions have been assigned to the teacher salary scale. Teacher employees are identified according to FLSA guidelines as exempt employees.

3. Auxiliary Employees. Auxiliary employees shall include those persons whose positions have been assigned to the auxiliary salary scale. Auxiliary employees are identified according to FLSA guidelines as exempt employees.

4. Non-Exempt Employees. Non-Exempt employees are identified according to FLSA guidelines and are eligible for overtime pay.

5. Exempt Employees. Exempt employees are identified according to FLSA guidelines and are not eligible for overtime pay.

6. Introductory Period. All new, full-time employees not specifically covered under Va. Code § 22.1-294 will serve an introductory period of six (6) months. Subject to the terms of Section A.6.b.ii below, such employees will be given regular status upon the successful completion of the introductory period.

a. Termination of Employment. During the introductory period, employment with the School Division may be terminated at any time either upon request by the introductory employee or by LCPS, upon recommendation of the introductory employee's relevant supervisor.

- i. Any request or recommendation for termination must be submitted in writing to the Department of Human Resources and Talent Development for review.

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- ii. The introductory period if not terminated under a.i. above, will be automatically extended by the number of days an employee is absent from scheduled work, regardless of cause.
- b. Supervision/Evaluation.
 - i. Supervisors are to observe carefully each introductory employee's job performance. Where appropriate, weaknesses in performance, conduct, or attitude are to be brought to the employee's attention for correction.
 - ii. In the event that the introductory employee's performance is not satisfactory, their supervisor must prepare a written evaluation of the employee's job performance before the end of the six (6) month introductory period. Employees who do not receive such an evaluation will be granted regular status.
- c. Benefits. New full-time employees are eligible for all benefits during their introductory period, in accordance with Policy 7626 (Health Insurance).

B. Full-Time/Part-Time Employment.

1. Full-Time Employment. In order to be considered as a full-time employee, employees hired prior to July 1, 2013, are required to be under regular contract or assignment in a position that is budgeted for at least 180 work days, for no less than 3.5 hours daily or the equivalent. Employees hired on or after July 1, 2013, are required to be under regular contract or assignment in a position that is budgeted for at least 180 work days, for no less than 4 hours daily or its equivalent. For additional information, refer to Policy 7626 (Health Insurance).

2. Part-Time Employment. Any employee not included in B.1 above or who signs a temporary/interim agreement is an at-will employee and considered a part-time employee. Part-time employees are not eligible for retirement or health benefits and are paid only for hours worked.

[Former Policy 7-8]

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Legal Refs: Code of Virginia, 1950, as amended [§22.1-79](#) (b), [§22.1-293](#), [§22.1-294](#), [§22.1-295](#), [8 VAC 20-90-10](#), [Fair Labor Standards Act \(FLSA\)](#)

Cross Refs: Policy [7626](#), Health Insurance; Policy [7330](#), Employment of Temporary Employees; Policy [7030](#), Staff Time Schedules